

HOUSE No. 2494

The Commonwealth of Massachusetts

PRESENTED BY:

Joseph D. McKenna

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to emergency room procedure for prescribing or dispensing pain medication to certain persons on probation.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/7/2025</i>

HOUSE No. 2494

By Representative McKenna of Sutton, a petition (accompanied by bill, House, No. 2494) of Joseph D. McKenna relative to procedures for prescribing or dispensing pain medications in emergency rooms to certain persons on probation. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2235 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to emergency room procedure for prescribing or dispensing pain medication to certain persons on probation.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the General Laws is hereby amended by inserting after section 51 ½ the
2 following section:-

3 Section 51 ¾. As used in this section, “pain medication” shall mean any opioid as
4 defined in section 1 of chapter 94C, benzodiazepine, barbiturate or any other prescription
5 medication for the treatment of pain that is likely to show up in the results of a urinalysis drug
6 test.

7 A treating clinician, prior to prescribing or dispensing pain medication to a patient
8 presenting in an acute-care hospital or satellite emergency facility as those terms are defined in
9 section 52 ½ , shall ask said patient, to the extent possible , the following questions:

10 “Are you currently on probation?”

11 “Are you currently required to take court mandated drug tests as a condition of your
12 probation?”

13 If the patient answers in the affirmative to both such questions, the treating clinician shall
14 administer a urinalysis drug test prior to the prescribing or dispensing of any pain medication.
15 The treating clinician shall inform the patient that the results of the drug test will be shared with
16 the department of probation. If the patient answers in the negative to either question, or to both
17 questions, the treating clinician shall not administer a drug test pursuant to this section.

18 If the patient answers in the affirmative to both such questions and submits to a drug test
19 as required by this section, the treating clinician shall, in a timely manner, provide the
20 department of probation with: (i) the patient’s name, (ii) the responses to the questions and
21 results of the drug test administered pursuant to this section, and (iii) a copy of the prescription
22 for any pain medication the clinician prescribed or dispensed.

23 This section shall not affect the treating clinician’s diagnosis and treatment of the patient,
24 including the prescribing or dispensing of pain medication, and shall not prevent a treating
25 clinician from dispensing pain medication as necessary to a patient in need of urgent medical
26 treatment.